



File No.: EXP202313012

RESOLUTION FOR FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 21, 2023, a complaint was filed with registration number REGAGE23e00056221769 before the Spanish Agency for Data Protection against SINDICAT CATACTCTSC with NIF G61762241 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant, a union delegate of the union making the complaint, indicates that it unilaterally suspended the union section that the complainant represented at the Hospital Universitario de Bellvitge. Furthermore, the union changed the access passwords to the email account of the section and to the cloud storage space without prior notice. As a result, the complainant was unable to download private documents and information that he had in that account. Additionally, by closing the account, the complainant has not been able to contact other workers and union members.

Along with his complaint, he provides:

- An email from the complainant (from his personal email) to the union's email requesting temporary access to the corporate account to recover some personal documents, dated June 19, 2023.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on October 10, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an additional attempt at notification by postal mail was made for informational purposes, in accordance with the provisions of Article 42 of the LPACAP, which resulted in "Returned to Origin due to surplus (Not collected at Office)" on November 2, 2023, after two unsuccessful delivery attempts on October 23 and 24, 2023. No response has been received to this forwarding letter.

THIRD: On November 8, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection (SGID) proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD.

In the framework of the aforementioned preliminary investigative actions, SINDICAT CATACTCTSC was requested to provide information regarding the policy on the use of email accounts of union sections, as well as the cloud storage space and phones, indicating who has access to these resources, what information can be stored, and for what purposes they are intended. Furthermore, it is required to inform how users of these resources are informed about the use they can make of them and the actions taken in case it is verified that these resources are used for personal activities and contain documentation with personal data unrelated to union activity.

For the specific case of the union section at the Hospital Universitario de Bellvitge (HUB), the complained party has been requested to inform whether, upon changing the access password to the

email and the cloud storage space, personal documents of A.A.A. were detected, and if so, what treatments have been carried out with them and whether access has been had to the contacts and WhatsApp messages of the phone in use by the complainant and treatments carried out with this data. Likewise, whether there is a record of the exercise of the right of access or cancellation of data carried out by the complainant, and if so, details of the procedure to address it and a copy of the information previously provided to A.A.A. regarding the use he could make of these resources.

The request for information was sent by postal mail and was recorded as delivered on December 5, 2023.

Due to the lack of response from the complained party, the SGID reiterated the previous request, of which there are two delivery attempts recorded on February 12, 2024, and February 13, 2024, both resulting in "Absent. Notice in the mailbox," and not having been collected from the office.

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LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

III

Conclusion

The facts subject to the complaint are directed against SINDICAT CATACT-CTSC for the suspension of the union section that represented the complainant at the Bellvitge University Hospital, changing the access passwords to the email account of the section and to the cloud storage space, without prior notice, thereby preventing the complainant from downloading private documents and information stored in that account, as well as contacting other workers and union members.

In view of the documentation presented, it has not been established that the respondent party received the request from the complainant for temporary access to their corporate email account in order to download the personal documentation stored in the inbox and in Google Drive, which was made on 19/06/2023, from their private email address.

Consequently, considering that the reasons for the incident are unknown, there are insufficient elements to assert that a violation of data protection regulations has occurred by the respondent party. It is necessary to point out that, to Administrative Sanctioning Law, due to its specialty, the principles inspiring criminal law apply, with some nuances, but without exceptions, resulting in the clear full validity of the principle of presumption of innocence.

Ultimately, those principles prevent attributing an administrative violation when no evidence has been obtained and established that substantiates the facts that motivate this accusation or the involvement of the alleged infringer in the same, applying the principle "in dubio pro reo" in case of doubt regarding a specific and determining fact, which obliges, in any case, to resolve such doubt in the most favorable way for the interested party.

Therefore, based on what is indicated in the previous paragraphs, no evidence has been found that substantiates the existence of a violation within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out,

applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute the commission of a violation to the respondent party according to the aforementioned, the Presidency of the Spanish Agency for Data Protection AGREES: FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to SINDICAT CATAC-CTSC and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of the LPACAP and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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